

		allegation to support Plaintiffs’ elder abuse claim. The motion is granted as to paragraph 43 as this goes to Plaintiffs’ punitive damages allegations which are not supported by the facts. Defendants’ motion is moot as to paragraphs 45 and 46 given that the Court sustains the demurrer to the fifth cause of action. <i>Injunctive and Declaratory Relief Allegations</i> Defendants restate their arguments made in the demurrer, contending that these allegations should be stricken because they are derivative of Plaintiffs’ other claims. The motion to strike is denied as to these allegations, given that Plaintiffs plead sufficient facts to support their trespass and elder abuse claims. Defendants shall give notice of both rulings.
53	<i>Ignatius vs. Ignatius</i>	The Court denies Defendants Stephen Ignatius, Monica Solorzano, Thomas Rieser, Kirsten Rieser, Villela, Inc.’s motion for attorney’s fees and costs under Code of Civil Procedure section 425.16 from Plaintiff Christina M. Ignatius. The case has a significant and unique procedural history. Moving Defendants brought an initial Anti-SLAPP Motion that was granted in large part on April 1, 2025. (ROA 395, 4/1/2025 Minute Order.) On that same date, Plaintiff was ordered to file and serve a new first amended complaint. (ROA 395, 4/1/2025 Minute Order.) The Court specifically admonished Plaintiff: This first amended complaint must be in compliance with the instant ruling. Plaintiff

shall not include any of the stricken claims or stricken allegations against the Moving Defendants. Plaintiff is reminded that after a ruling on a demurrer, she cannot add additional causes of action or new parties without first seeking and obtaining leave from Court with a noticed motion. (See Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023 [ruling that adding new cause of action after demurrer is improper]; People v. Clausen (1967) 248 Cal. App. 2d 770, 785-876 [finding that adding new party after demurrer is improper]; Cal. Rules of Court, rule 3.1324.)

(ROA 395, 4/1/2025 Minute Order.)

On May 1, 2025, Plaintiff filed her First Amended Complaint (FAC). (ROA 448.) But the FAC failed to comply with the April 1, 2025, ruling because Plaintiff included allegations that were found in violation of Section 425.16.

Moving Defendants filed two Motions to address the improper allegations included in the FAC: (1) a regular motion to strike under Code of Civil Procedure § 436 to strike the improperly included allegations that were already addressed in the first Anti-SLAPP motion (ROA 519); and (2) a new Anti-SLAPP Motion under Code of Civil Procedure § 425.16 (ROA 538).

The Court granted the regular motion to strike on September 24, 2025. (ROA 626, "...the motion to strike portions of the FAC as set forth on pages 2-11 of the motion to strike (ROA 519) is granted without leave to amend".)

Pending at that time was the new Anti-SLAPP motion directed to the FAC. (See ROA 538.) By the time that motion came for hearing, it was moot due